

SUMMARY

DECISION NO. 1050/01

Accident (occurrence); Evidence (inconsistencies) (description of accident).

DECIDED BY: Sajtos; Rao; Young

DATE: 07/05/2001 NUMBER OF PAGES: 6 pages

ACT: WSIA

WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 1050/01

- [1] This appeal was heard in Toronto on April 9, 2001, by a Tribunal Panel consisting of:

E.J. Sajtos : Vice-Chair,
B.M. Young : Member representative of employers,
F. Rao : Member representative of workers.

THE APPEAL PROCEEDINGS

- [2] The worker appeals the decision of the Appeals Resolution Officer dated March 9, 2000. That decision concluded that the worker was not entitled to benefits arising from an alleged workplace accident of March 23, 1999.

- [3] The worker appeared and was represented by Mr. Goennemann, a union representative. The employer was represented by Mr. O'Dell, a consultant.

THE RECORD

- [4] The Panel considered as evidence, the Case Record and correspondence dated October 20, 2000, November 15, 2000 and October 24, 2000 with attachments.
- [5] The Panel heard testimony under oath from the worker, Mr. L and Mr. O. Mr. Goennemann and Mr. O'Dell provided submissions.

THE ISSUE

- [6] The issues in this appeal are whether the worker sustained a workplace accident on March 23, 1999 and, if so, whether the worker is entitled to benefits as a result of that accident.

THE REASONS

(i) The evidence

- [7] The worker was hired in November 1998, as a manager of a meat department in a grocery store. In testimony, the worker stated that he was treated for back pain by his family physician in January 1999 and was diagnosed with a muscle strain. According to the worker, he was not aware as to whether or not the muscle strain was related to his employment and therefore, he did not make a claim for compensable benefits.
- [8] In a Physician's First Report from Dr. Simmons, dated April 1, 1999 it was indicated that the patient's history of injury was that of a slip and fall in the shower with immediate low back and right leg pain. The doctor then wrote "he asked me to send a report to WCB because of pre-

existing back pain that he tells me is work-related". The worker was diagnosed with a lumbar disc injury.

[9] In a Worker's Report of Injury dated April 27, 1999, the worker indicated that on March 23, 1999, he was assisting with the unloading of a skid of damaged groceries when a banana box, that was packed with bags of damaged flour boxes, fell from the top of the skid. The worker attempted to catch the box and, as he did so, he twisted and jerked his back. Flour fell from the box and landed on his body and clothing. In an Employer's Report of Injury dated April 23, 1999 it was indicated that the "worker claimed he could not come in to work because he slipped and fell in the bathtub, injuring his leg. Not work-related".

[10] In correspondence dated June 11, 1999, the worker's family physician, Dr. Ames provided the following information:

As stated on my WSIB report the worker saw Dr. Simmons on March 25, and April 1, 1999. He mentioned having previous back problems that were work-related and had been seen January 1999 due to work-related back pain.

When I returned from vacation and saw the worker on April 5 and 13 he had ongoing pain and difficulty moving.

When I saw him on April 29/99, he discussed how he had caught a 40-kg box of flour on March 23/99, that his back had felt sore, he was off work next day then in a.m. of March 25 had felt leg give out in shower and he fell.

I have no other visits prior to the March 25 visit with Dr. Simmons and as such can not verify or refute my patient's claim other than to state that he has had previous work-related pain due to back problems from his job.

[11] The Appeals Resolution Officer, in his decision of March 9, 2000 denied the worker's claim based on a finding that there was insufficient evidence to establish a proof of accident on March 23, 1999.

[12] The worker testified that on March 23, 1999, he was assisting the assistant store manager, Mr. L, with a skid full of "repacked" products (damaged items). A banana box filled with damaged flour containers, which was located approximately seven feet high, fell and when he attempted to catch it, he twisted his back. Some of the flour fell on his shirt and the floor. The worker stated that he did not mention the incident to Mr. L but he was of the view that this individual could not have missed the accident, as he and a truck driver yelled in order to ensure that Mr. L stopped pushing the slat, as the rest of the boxes were also starting to fall.

[13] The worker then went home and his back slowly began to stiffen up. The next day was his regularly scheduled day off and his back continued to be stiff. At the time, he did not think that he had a serious injury and on the following day, which was a Thursday, he was preparing to go to work for a 1 p.m. shift. While in the shower, his right leg suddenly felt like an "electric shock" was running through it and he fell. He was in a great degree of pain and was forced to crawl to a telephone in order to contact his partner. His partner then drove him to the doctor and phoned the store manager, Mr. O, in order to inform him that the worker would not be going to work that afternoon. The worker testified that, contrary to the written documentation, he did not slip while in the shower but rather his right leg gave out causing him to fall.

- [14] When asked about his prior appointment with Dr. Ames in January 1999 with regard to back pain, he stated that he had had a muscle spasm but this condition had fully resolved by March 23, 1999.
- [15] Due to ongoing pain in March 1999, the worker was referred to an orthopaedic surgeon and had surgery on October 6, 1999. He was not able to return to work with the accident employer, however, he has been granted long-term disability benefits and is currently participating in a Payroll and Accounting Administration course.
- [16] When asked why the worker did not report the workplace accident when it occurred, he replied that as he did not have immediate back pain, he did not think that the incident was a “big deal”. When asked what the worker had done on March 24, 1999, which was his scheduled day off, he stated that had rested and made supper for his partner. He testified that although he had some discomfort, he was not “debilitated that day”.
- [17] Mr. L, the assistant store manager, testified that he was hired by the accident employer at the end of February 1999 and worked with the worker for approximately one month. He stated that in his position as an assistant manager if he had witnessed a workplace accident, he would have completed an Accident Report in accordance with the employer’s practice. When asked whether he was aware of a workplace injury on March 23, 1999, he stated that he was not aware that the worker had had an accident that day nor did he recall witnessing the worker spill flour on himself or the floor. The witness stated that nothing in particular stood out about March 23, 1999 and he did not remember seeing the worker on that day, although it would have been the normal practice for the worker to report at the end of his shift.
- [18] Mr. L. testified that he first became aware that the worker had a back disability when he was told by Mr. O, the store manager that the worker had slipped and fallen in his bathtub and was unable to go into work. It was not until one week later that Mr. O informed the witness that the worker was claiming a compensable injury.
- [19] The evidence of Mr. O was that he had been employed with the accident employer for 21 years and on March 23, 1999, he was the store manager.
- [20] Mr. O testified that on March 25, 1999, the worker’s partner telephoned and indicated that he would not be coming to work as he slipped and fell in the bathtub. Later that day, the worker also telephoned Mr. O and indicated that he would not be coming to work. According to the witness, in neither phone conversation was a work-related accident claimed as being the cause of the worker’s condition. In addition, the witness stated that the worker described the bathtub incident as a “slip and fall” but did not indicate that he had an “electric-like feeling” in his leg while in the shower. Mr. O stated that he was not aware that the claim was being made for a compensable accident until the company’s health and safety co-ordinator contacted him several days later.

(ii) The Panel’s reasons

- [21] The worker is requesting entitlement to loss of earnings benefits in accordance with the *Workplace Safety and Insurance Act, 1997*.

- [22] The worker's position is that as a result of a twisting incident at work on March 23, 1999, he injured his back and this caused his left leg to give out while he was having a shower on March 25, 1999.
- [23] *Operational Policy Manual*, Document #02-01-02, "Adjudicative Process" states that when determining "proof of accident" points for Adjudicators to consider include:
- Does an accident or disablement situation exist?
 - Are there any witnesses?
 - Are there discrepancies in the date of accident and the date the worker stopped working?
 - Was there any delay in the onset of symptoms or in seeking medical attention?
- [24] The Panel notes that on March 25, 1999, the worker was diagnosed with a lumbar disc injury, which subsequently resulted in the need for surgery. The issue that we must determine is whether or not this condition arose out of and in the course of the worker's employment entitling him to benefits under the insurance plan.
- [25] The worker testified that he injured himself on March 23, 1999 when a bag of flour fell from a box and in an attempt to catch the box, he hurt his back. The worker stated in his report of injury that the workplace incident was witnessed both by a truck driver and the assistant manager, Mr. L. The assistant manager, Mr. L. testified that he was not aware of any injury nor did he recall anything out of the ordinary occurring on March 23, 1999. Mr. O, the store manager, testified that the worker telephoned him on March 25, 1999 and indicated that he had slipped and fallen in the bathtub and no mention was made of an employment-related incident. Neither the employer nor the worker attempted to contact the truck driver subsequent to March 23, 1999.
- [26] On March 23, 1999, the worker went home and then had a scheduled day off. On March 25, 1999, it was his intention to return to work at his scheduled 1 p.m. shift. While having a shower, his right leg gave way resulting in a fall in his bathtub. Although the worker testified that his back was stiff, he had not sought medical attention nor did he intend to see his family physician prior to the shower incident, as he was of the view that the workplace accident was minor. It was not until the fall in his bathtub that his symptoms substantially increased and he was then forced to seek medical attention.
- [27] The Panel has carefully reviewed the evidence of the witnesses and the worker and we note that there are several discrepancies with regard to the history of the worker's accident. In particular, we note the discrepancies with respect to the evidence as to whether the worker slipped and fell in the bathtub, or his leg gave way. The store manager clearly remembered the worker's partner stating that the worker slipped and fell in the shower. The reporting physician, Dr. Simmons, who stated that the worker "slipped in the shower at home", supports this description of the accident. Alternatively, the worker testified at the hearing that he did not slip but rather an "electric shock-like" feeling went through his right leg and he then fell.

[28] The Panel also notes that Dr. Simmons does not report a workplace injury of March 23, 1999 but rather refers to “pre-existing back pain that he tells me is work-related”. The worker then went to see his family physician, who had been on vacation on March 23, 1999, on April 5 and 13, 1999. The worker did not report a workplace accident to the doctor at either of these visits. During the course of his testimony, the worker did not address why he did not tell his family physician until his third visit on April 29, 1999 about the nature of his alleged workplace accident on March 23, 1999.

[29] Based on the discrepancies in the evidence and the testimony of the worker, combined with the delay in reporting a specific incident to his family doctor, the Panel is not persuaded that the worker suffered a workplace accident on March 23, 1999. We also note that there was a delay in the onset of symptoms and the worker did not seek medical attention until his fall in the bathtub on March 25, 1999. Based on a balance of probabilities, we are unable to conclude that the worker is entitled to insurance benefits in accordance with the *Workplace Safety and Insurance Act*, 1997.

THE DECISION

[30] The worker’s appeal is denied.

DATED: May 7, 2001

SIGNED: E.J. Sajtos, B.M. Young, F. Rao